

TIMBERLAND REGIONAL LIBRARY
BOARD OF TRUSTEES MEETING
Winlock Public Library, 322 1st St., Winlock, WA 98596
September 17, 1981

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TIMBERLAND REGIONAL LIBRARY
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Winlock Public Library, 322 1st St., Winlock, WA 98596

September 17, 1981

M I N U T E S

BOARD MEMBERS PRESENT:

Alice Harris, Chair - Mason County
Elmer F. Keiski - Thurston County
Shirleen Johnson - Member-at-Large
Dorothy Voegel - Grays Harbor County
Larry Parsons - Lewis County

BOARD MEMBERS EXCUSED:

Donald L. Law - Member-at-Large
Paul Polillo - Pacific County

STAFF PRESENT:

Louise E. Morrison, Library Director
Virginia Barton, Associate Director for Research & Planning
Mary Stough, Assistant Director for Public Services
Tom Mayer, Supervisor-Personnel Administration
Michael Crose, Business Manager
Alice Blenn, Community Library Assistant II, Winlock
Jeanette Davis, Winlock Library Supervisor
Dorothy Snook, Community Library Assistant II Substitute, Winlock
Edmunda Waller, Community Library Assistant II Substitute, Winlock
Herbert H. Fuller, Timberland Attorney
Liane Bascou, Board Recording Secretary

GUESTS PRESENT:

Floy Blum, Winlock Library Board
Susie Burrington, Winlock Library Board
Joe Herr
Vonda Herr
Dorothy Johnston, Winlock Library Board
Eileen Parsons
Kay Raupp, Winlock Library Board
Fiona Reeves, Winlock Friends of the Library
Daniel Shaddox, Winlock Friends of the Library
Gina Shaddox

Mrs. Harris called the meeting to order at 7:40 p.m. She said that she was pleased that the Board could meet at Winlock and thanked Winlock Board, Friends and staff for the dinner previous to the meeting. Mrs. Harris introduced the Board members and TRL staff, and guests were introduced.

AGENDA ITEM
NO.

- 1 Approval of Minutes of the August 20, 1981 Meeting

81-66 DOROTHY VOEGE MOVED TO APPROVE THE MINUTES OF THE AUGUST 20, 1981 BOARD MEETING; SHIRLEEN JOHNSON SECONDED THE MOTION.
MOTION CARRIED.

2 Approval of Vouchers

Mrs. Harris stated that payroll vouchers paid for the month of August 1981 totaled \$218,619.29.

81-67

LARRY PARSONS MOVED TO APPROVE VOUCHERS #9241 THROUGH #9393 IN THE AMOUNT OF \$63,805.10; DOROTHY VOEGE SECONDED THE MOTION.

Mrs. Johnson questioned voucher #9263 to Donworth, Taylor & Co. in the amount of \$3,605.12. Mr. Crose stated that this is the final billing on the Classification Plan review. Mrs. Morrison brought the Board's attention to voucher #9296 to Pacific Northwest Bibliographic Center in the amount of \$1,008.25. She explained that this service charge is because funding has run short of what is necessary to run the services provided by PNBC and hopefully this year their books may balance out. Mrs. Morrison stated that PNBC is used for interlibrary loans. Mrs. Johnson questioned voucher #9313 to 3-M in the amounts of \$193.51 and \$379.44. Mr. Crose explained that the first amount is for supplies for the reader printers and the second amount is for the repairs and maintenance agreement on the printers for the next year. Mr. Parsons questioned voucher #9317 to Title Guaranty Co. of Lewis County in the amount of \$800.00 and Mr. Crose stated that this is for rental of the South Mason Library building.

MOTION CARRIED.

3 Reports

A. Business Manager - Michael Crose

Mr. Crose had nothing further to add to his written report.

B. Timberland Attorney - Herbert H. Fuller

Mr. Fuller reported that he has reviewed the revised Purchase Agreement between DataPhase and the Consortium for Automated Library Services to see if there are any legal impediments. He said he has also discussed the agreement with the Senior Assistant Attorney General who is representing the state. He sees no legal impediments with the agreement. Mr. Fuller stated that he understands that Mrs. Morrison is going to recommend that the Board approve offering this contract to DataPhase provided that the vendor confirms items I and J in the Booking Function in writing so that it agrees with CALS understanding that these lists can be printed in each branch daily. He said that it is the feeling of the Director that this is a very important item and the agreement should be approved with that understanding.

C. Library Director - Louise E. Morrison

Mrs. Morrison reported that the Board has received Ms. Loken's report on the automated circulation system and Ms. Loken highly recommends that the Board approve the signing of this contract provided the change Mr. Fuller referred to is made in the Booking Function. She said that in the outlets where there is film

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service available for checkout immediately on the premises, Timberland intends to have a printer attached to the computer, and it is essential that those lists of materials which have been booked for that day be available each day in those branches and that the packing list also be available so that at a quick glance, staff can tell what needs to be packed and shipped, what needs to be laid aside, and anything else then would be available for booking. Mrs. Morrison stated that in earlier discussion, the vendor felt that this could be provided from the main computer site and mailed out or delivered to the branches and Timberland said that it would be difficult in a large district to deliver these very easily, so Timberland is still insisting on this. She said that as far as Timberland is concerned, it is a matter of signing or not signing the agreement; that is how important it is to Timberland. Mrs. Morrison recommended that the Board approve offering the contract to DataPhase with this understanding.

D. TRL/Contract City Committee - Larry Parsons

Mr. Parsons reported that he chaired a committee appointed by Mrs. Harris to look at some of the problems of the contract cities. The committee consists of Paul Polillo, Dorothy Voege, Mike Crose and himself. Mr. Parsons said the committee met in August and it quickly became evident to them that the cities are having terrible financial problems and in no way could the committee solve the city's financial problems so that they could continue to contract for service with Timberland. The committee decided from that meeting that they would like to hear from representatives from the contract cities. A meeting was held on September 3 at the Service Center with representatives from contract cities' councils, library boards, TRL board and staff, wherein concerns of the contract cities were heard. A committee from the contract cities was formed consisting of Olympia Mayor Lyle Watson; Murrey Fuller representing Elma and Montesano; Mayor pro tem of Lacey, Dick Bever; Stan Finklestein of the Association of Washington Cities, and Jim Loaris from the Chehalis City Council. This committee met with the TRL committee at the Service Center to investigate alternatives for paying contract fees.

Mr. Parsons stated that it became evident that the biggest problem the cities has is when the levy jumps way up after reassessment every four years. It also became evident that many cities are in favor of annexation to the library district. Mr. Parsons explained that in order for a city to annex to a library district, it would have to be put to a vote of the people who live in the city to decide if they would be willing to pay an extra tax for the library. He said that the TRL Board would have to also approve the annexation. Mr. Herr asked what the money difference would be to TRL if a city annexed to the library district. Mr. Parsons said that Timberland would still receive the same amount of money. He explained that the money that the cities currently pay to Timberland could be used for other items, such as police, and what annexation would do is provide for an extra tax from the citizens of the city to pay for library service. Mrs. Herr asked about the people who live outside the city and use the city library. Mrs. Johnson explained that the people who live in the unincorporated areas are already paying a tax for library service.

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Mr. Parsons explained that when Timberland originally began, it was allowed to levy 50¢ per \$1,000 of assessed valuation, but because of the 106% levy lid, the levy rate comes down each year. Mrs. Johnson asked that an explanation be made of how Timberland arrives at its levy rate. Mr. Crose explained that Timberland is allowed to levy a certain amount per \$1,000 of assessed valuation. For instance, in 1982, Timberland would take the dollar amount that it was able to levy in 1981 times 106%. So Timberland raises its tax amount by 6%. Timberland is also given allowance for new construction in the district. The library district is the unincorporated area of the five counties. Whatever the total dollar value of new construction is in 1981 will be multiplied by the 1981 levy rate and that will give Timberland an additional dollar allowance for 1982 taxes. The reason for this is because the houses exist in 1981 and Timberland is serving those people, but is unable to levy taxes, so it is a sort of catch-up factor. One other item is the increase in state assessed utility values multiplied by the 1981 levy rate which gives Timberland an added dollar allowance for 1982 taxes. Mr. Crose said that in summary, Timberland then has the previous year's levy amount times 106%, the increase from new construction and the increase from utilities to give a total dollar amount. That would be Timberland's total levy amount. Timberland then finds out the assessed value of all real and personal property in the unincorporated area and that assessed valuation is divided into Timberland's maximum allowable tax dollars to come up with Timberland's levy rate. Mr. Crose said the levy rate must be the same in all five counties.

Mrs. Barton pointed out that the higher the assessed value is each year, the lower the number of cents per thousand Timberland can levy. Mrs. Harris explained that Timberland is a rural library district and cities may contract for service. She said as cities have reached financial problems, it is becoming more and more difficult to meet the contract fee costs.

Mr. Parsons said that Mr. Finkelstein and Mr. Watson have proposed that Timberland be paid a flat rate of 14.24% of the cities' revenue levied by property taxes for the library. He explained that when cities originally contracted with Timberland, they were paying about 14% of the money they levy overall for library service. Because of reassessment every four years, this amount goes way up and then back down and this is causing a problem for the cities. Mr. Crose was asked to go through the figures and find out if it would be possible for the cities to pay Timberland a flat rate without hurting Timberland. Mr. Parsons said one problem with this is that all the cities would have to do it. He said his committee is concerned that whatever options they look at will be acceptable to the Board, cities and the people in the unincorporated areas. The committee's largest concern is that it be fair to everyone.

Mr. Parsons reported that the committees have come up with four alternatives for the cities to pay for library service. The first is to continue with the current method. Another is the 106% method where the city can take the amount paid to Timberland after reassessment and average it out over four years. Another method is

3D annexation, where the people of the city would vote to annex to the library district and in effect agree to pay an extra tax for library service. The fourth method would be the one proposed by Mr. Finkelstein and Mr. Watson wherein the cities would pay a flat percentage rate.

6 New Business

A. Adoption of Resolution #81-5 re Annexation of Cities Within
Timberland Regional Library

Mr. Parsons stated that in the Board's folders there is a proposed resolution which attorney Herb Fuller had drawn up with regard to annexation.

81-68

LARRY PARSONS MOVED TO ADOPT RESOLUTION #81-5 REGARDING
ANNEXATION OF CITIES WITHIN TIMBERLAND REGIONAL LIBRARY;
SHIRLEEN JOHNSON SECONDED THE MOTION.

Mr. Parsons read the resolution as follows:

"WHEREAS, Chapter 27.12 RCW, as amended, provides a procedure for cities to join the Timberland Regional Library district through annexation; and

"WHEREAS, It seems desirable for the Timberland Regional Library Board of Trustees to indicate the conditions under which the Board would approve a proposed annexation of a requesting city; now, therefore, be it

"RESOLVED That the Timberland Regional Library Board of Trustees will approve of the inclusion within the Timberland Regional Library of a currently contracting city with city-owned or city-leased facilities, provided there is prior written agreement from such city to provide suitable quarters for the library, and further to provide satisfactory heat, light, water, janitor service, grounds maintenance, and modifications necessitated by technological changes in library service, all without cost to Timberland Regional Library."

Mr. Fuller stated that it may be beneficial to let the cities know that this is what Timberland is considering right now, but legislation may change and no one should get the idea that this resolution is forever. Mr. Parsons said that one reason why Timberland is considering this resolution tonight is because he understood that Chehalis may try to run the annexation issue on the November ballot and there is a crucial time element involved.

Mr. Parsons showed a pie chart of 1980 revenue which indicated how much revenue Timberland receives from general property taxes in unincorporated areas, from city contract fees (which was about 27% of Timberland's total revenue in 1980), forest excise tax, miscellaneous revenues and other forest taxes. He said that less than one-third of Timberland's total revenue comes from contract cities. Mr. Parsons said that in every city which contracts with Timberland, with the exception of Cosmopolis, the contract fee does not even

- 6A pay for the staff which work in each building. He said that he personally feels that each city should pick up the costs of the building. Even though people in the unincorporated areas use the city buildings, these people also spend money in the cities and help support library service.

MOTION CARRIED.

3 Reports

D. TRL/Contract City Committee - Larry Parsons

81-69

LARRY PARSONS MOVED THAT THE TIMBERLAND REGIONAL LIBRARY BOARD OF TRUSTEES ACCEPT THE PERCENTAGE METHOD OF FIGURING THE CONTRACT FEE WHEREIN THE CONTRACT CITIES PAY 14.24% OF THEIR PROPERTY TAX LEVY FOR LIBRARY SERVICE AND FURTHER MOVED THAT THE TIMBERLAND BOARD ACCEPT THIS PERCENTAGE SOLUTION AS AN INTERIM MEASURE FOR 1982 AND 1983.

Mr. Crose said that this should depend upon participation of all contract cities. Mrs. Voegel agreed that this method would not work unless all cities would agree to take part.

ELMER KEISKI SECONDED THE MOTION.

Mr. Keiski asked what the advantage of this would be to the cities and Mr. Crose stated that there would be no "surprises" to the cities every four years. Mr. Keiski asked if there would be any loss in revenue to Timberland and Mr. Crose stated that he sees no problems for Timberland. Mr. Parsons explained that this is limited to 1982 and 1983 because the cities would need that time if they decide to try to annex to the library district. Mrs. Johnson said she is not sure about this as she feels that the Board is pushing the cities into decisions which the Board has no right to do. Mrs. Voegel stated that the method of paying 14.24% actually came from the cities' committee. Mrs. Johnson said that although she personally feels this is a good step to take, she questions whether or not Timberland has the right to do it or do it this rapidly. Mr. Crose said that what he thinks the Board is doing is offering a range of solutions to the contract cities. Mrs. Johnson said that they are saying all the cities must go with this method or none can. Mr. Keiski said the alternative to that would be to negotiate individually with the cities. Mrs. Harris stated that she does not think that Timberland could operate that way. Mrs. Barton said that this motion only makes it possible for the city committee to go back to the cities with this option. Mr. Keiski stated that Timberland is accepting the proposal made by the city committee so that the city committee can in turn go back to the cities and get their ratification. He said if the cities do not approve this, the whole thing is moot and they would have to go back to bargaining. Mr. Parsons said that this is the cities' idea and the Board needs to let the cities know that this will not hurt Timberland and that Timberland is flexible. Mrs. Morrison stated again that it will not work unless all the cities agree to it. Mr. Keiski said the motion should say that 100% of the contract cities have to participate to prevent financial loss to Timberland.

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MR. PARSONS AND MR. KEISKI WITHDREW THEIR MOTION.

It was agreed that the meeting would recess for a few minutes at 8:35 p.m. The meeting reconvened at 8:50 p.m.

Mr. Parsons immediately offered another motion.

81-70

WHEREAS THE COMMITTEE REPRESENTING CONTRACT CITIES REQUESTED THAT THEY PAY AN AMOUNT EQUAL TO A FIXED PERCENTAGE OF THE PROPERTY TAX LEVY RATHER THAN A FEE BASED UPON TIMBERLAND REGIONAL LIBRARY'S LEVY RATE WHICH BY ITS VERY NATURE CAUSES WIDE VARIATIONS FROM YEAR TO YEAR WHEN CONSIDERED AS A PERCENTAGE AMOUNT OF THE CITIES' PROPERTY TAX LEVY, HE HEREBY MOVED THAT THE TIMBERLAND REGIONAL LIBRARY BOARD ACCEPT THE PERCENTAGE SOLUTION AS AN INTERIM MEASURE FOR 1982 AND 1983 SO THAT A CITY MAY PAY FOR LIBRARY SERVICE AT THE RATE OF 14.24% OF ITS PROPERTY TAX LEVY, PROVIDED, HOWEVER, THAT ALL CITIES PARTICIPATE; ELMER KEISKI SECONDED THE MOTION. MOTION CARRIED.

Mrs. Harris said she appreciates the work the committee has done on this, and she appreciates Mr. Crose's help and Mr. Fuller's help.

4

Correspondence

A. Letter from City of Oakville re Extension of Contract Renewal Notification Date

Mrs. Harris read the letter as follows:

"As you probably know, the Oakville City Council is going to try to lift the 106% tax levy limitation lid to increase revenue for the City. This will be voted on in the November election.

"Since our contract with you has to be, either, renewed or cancelled at the end of September, we were wondering if an extension of our contract renewal could be granted until after the November election."

/s/ Archie E. Inmon, Mayor

Mrs. Morrison recommended that the Board grant this extension. Mrs. Voege commented that the City of Oakville is working very hard to find funds to build a city hall/library building and she recommended also that the Board grant this extension. Mrs. Johnson asked if the Board has a right to give an extension. Mr. Fuller stated that the contract may be terminated at the end of any fiscal year by either party by giving written notice at the official office of either party at least 90 days prior to the end of the fiscal year. He said an extension of this notice would in effect be an amendment to the contract. Mr. Fuller said the motion should state that this is for 1981 only and should indicate how many days the Board is extending.

6 New Business

- B. Decision re Requested Extension of Contract Notification Dates for Oakville and McCleary

81-71

DOROTHY VOEGE MOVED THAT FOR THE YEAR 1981 ONLY, THAT THE BOARD GRANT 45 DAYS EXTENSION ON OAKVILLE'S NOTIFICATION TO CANCEL ITS CONTRACT WITH TIMBERLAND; SHIRLEEN JOHNSON SECONDED THE MOTION. MOTION CARRIED.

4 Correspondence

- B. Letter from Bill Moeller, Mayor, City of Centralia

Mrs. Harris read the letter as follows:

"It was nice to meet and talk with you again at the Timberland Regional library headquarters on September 3rd. I am sure that each one of us present, learned something new about the problems 'on the other side of the fence.'

"One thing which the meeting did for me was to encourage me to go to the files for the contract (a copy of which is enclosed) and read it for, what I must confess was, the first time.

"The interesting section from our point of view is paragraph No. 4. Nowhere does it state or imply that the City of Centralia be required to supply free office space for those employees of TRL whose work consists of servicing the unincorporated areas of the county (an activity which the City has been doing since the beginning of the contract). Nor does it say that the City shall provide free garage space for the bookmobile, which we have been doing since the renovated library was re-opened in September, 1978.

"We would like to meet with a representative of TRL to discuss compensation for these past and present services provided by the City of Centralia."

Mrs. Harris also read paragraph 4 of the contract as follows:

"It is agreed that the said City shall provide suitable quarters for the library, and shall provide satisfactory heat, light, water, janitor service and grounds maintenance without cost to the Board."

Mr. Parsons asked if Timberland provides more staff to that building because of the bookmobile and he was advised that is true, as well as a larger collection because of the bookmobile. Mr. Keiski suggested that the Board respond to Mr. Moeller's letter and tell him that a representative from Timberland will discuss his concerns with him. Mrs. Morrison recommended that this be handled by the TRL city contract committee, and that she and Mr. Crose will help with this. Mrs. Harris appointed the TRL city contract committee to meet with Mr. Moeller.

5 Unfinished Business

A. Approval to offer CALS Contract to DataPhase Systems, Inc.

See Agenda Item No. 3C.

81-72

SHIRLEEN JOHNSON MOVED THAT THE DIRECTOR BE EMPOWERED TO SIGN THE CONTRACT WITH DATAPHASE PROVIDED IT MEETS THE REQUIREMENTS OF TIMBERLAND REGIONAL LIBRARY IN THE BOOKING FUNCTION; DOROTHY VOEGE SECONDED THE MOTION. MOTION CARRIED.

Mr. Parsons asked what the time line is on this contract. Mrs. Morrison said that they hope to send this contract to DataPhase on September 18 and have it signed by all parties by the end of the month.

6 New Business

B. Decision re Requested Extension of Contract Notification Dates for Oakville and McCleary

See Agenda Item No. 4A and Motion No. 81-71 with regard to Oakville. Mrs. Morrison stated that she did not receive written communication from McCleary but that the request for an extension was made by telephone, to be confirmed in writing.

81-73

DOROTHY VOEGE MOVED TO GRANT MCCLEARY 30 DAYS EXTENSION TO CANCEL ITS CONTRACT WITH TIMBERLAND FOR 1981 ONLY; LARRY PARSONS SECONDED THE MOTION. MOTION CARRIED.

7 Other Agenda Items

A. Special Meeting September 30, 1981

Mrs. Harris reminded Board members of the special meeting on September 30, 1981, at the Service Center.

B. October Board Meeting

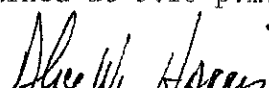
Mrs. Harris reminded Board members that they will be meeting at the Hoquiam Library on October 15.

C. Thurston County Board Representative

Mr. Keiski said he has been approached by a citizen from Thurston County who is interested in serving on the TRL Board. His name is Perry Newell and he is interested in libraries and computerization and up-to-date technology by nature of his job. Mr. Keiski said he will be leaving a vacant position at the end of this year. He said that Mr. Newell is a member of a minority group in Thurston County and should be an excellent representative in a group which has never been represented on the Board.

There was no further business and the meeting adjourned at 9:10 p.m.


SECRETARY


CHAIR